

9:00 A.M.

Calendar Line # 1

Case Name In the Matter of: Estate of Weiwei Hsieh

Case No. 23PRI94132

Petition for Order Award Costs, Reimbursement, and Return of Beneficiary Funds against Respondent H.W. Spencer Hsieh

I. BACKGROUND

Petitioner Andrey Jivsov (“Petitioner”) initiated this case by filing a petition to probate a purported will of WeiWei Hsieh (“Decedent”) signed in 2020. The petition was not opposed and on April 6, 2023, the court admitted Petitioner’s proffered will to probate and issued letters testamentary. The 2020 will leaves the entirety of the estate to Fiona Jivsov (“Fiona”), Petitioner’s and Decedent’s daughter.

On August 7, 2023, H.W. Spencer Hsieh (“Respondent”), Decedent’s former husband, filed a petition for revocation of probate of will, to suspend and remove Petitioner as executor of Decedent’s estate and trustee of a trust of Decedent’s executed in 2020, to determine interference with expected inheritance, and alleging claims for return of estate property, wrongful taking of estate property, conversion, elder abuse, fraud, misappropriation of estate property, breach of fiduciary duty, and constructive trust. Respondent asserts that Decedent executed a valid trust in 2022 a few days before she committed suicide and, therefore the 2020 will is not the operative will (“Respondent’s Petition”). The purported beneficiaries of the 2022 trust are Fiona Jivsov and Respondent. Petitioner has opposed Respondent’s Petition, contending, inter alia, that the trust proffered by Respondent is invalid on multiple grounds.

The court granted Petitioner’s unopposed request to bifurcate trial on Respondent’s Petition as follows: (1) phase one: Respondent’s standing, jurisdictional and procedural issues, and the preclusive effect of a Nevada court order invalidating the trust Decedent executed just days before her death and (2) phase two: the merits of Respondent’s Petition. After trial, the Honorable Duong issued an order finding in Petitioner’s favor as to phase one.

Thereafter, on February 25, 2026, Petitioner filed a memorandum of costs. On April 13, 2026, Petitioner filed a petition entitled “Petition for Order Awarding Costs, Reimbursement, and Return of Beneficiary Funds Against Respondent H.W. Spencer Hsieh” (“Cost Petition”). On July 14, 2026, Respondent filed an opposition to the Cost Petition.

Currently before the court is Petitioner’s Cost Petition.

II. PROCEDURAL VIOLATION

On June 17, 2026, the Honorable Saban ordered that the Cost Petition be heard on the law and motion calendar. Judge Saban also ordered that Respondent file his opposition by end of day on June 17, 2026. The Court notes procedural violation by Respondent, who filed opposition on July 14, 2026.¹ In violation of the court order, the Respondent’s paper is over five weeks late. Additionally, per Code of Civil Procedure section 1005(b) opposition papers were to be filed by July 9, 2026.

California Rules of Court, rule 3.1300, subdivision (d) states, “No paper may be rejected for filing on the ground

¹ The opposition is improvidently titled, “HW Spencer Hsieh’s Opposition to Andrey Jivsov’s Notice of Motion and Motion to Tax Costs[.]” The court notes that the party prevailing at trial generally files a memorandum of costs and the opposing party files a motion to strike or tax costs. (See Cal. Rules of Court, rule 3.1700(a)&(b)).

that it was untimely submitted for filing. If the court, in its discretion, refuses to consider a late filed paper, the minutes or order must so indicate.”

Here, the Court balances the totality of circumstances, including judicial economy to avoid the expenditure of any further judicial resources, the court will continue the hearing for consideration of the motion and opposition on its merits. However, the Respondent is hereby admonished to comply with Rule of Court and Code of Civil Procedure. Any future violations may result in the court’s refusal to consider untimely filed papers.

III. CONCLUSION

The hearing on the Cost Petition is hereby CONTINUED. The parties and/or their counsel are ordered to appear, in person or remotely, to select a new hearing date. The Court will prepare the formal Order.

Calendar Line # 2

Case Name Declaration of Trust of Robert G. Cosgrove and Marian V. Cosgrove, dated August 17, 1987

Case No. 25PR201006

Motion to Approve Settlement Agreement

I. BACKGROUND

Petitioner Sandra Jean Baker (“Petitioner”) initiated this action by filing a petition concerning internal affairs of trusts and for transfer of real property. Petitioner asserts that she is the daughter of Robert Cosgrove and stepdaughter of Marian Cosgrove (collectively, “Settlors”), settlors of the Trust of Robert C. Cosgrove and Marian V. Cosgrove. Petitioner maintains that Settlers entered into an agreement with her in 1981 whereby she would be able to lease the real property located at 151 La Canada Court, Los Gatos, California (“Property”) for a term of 10 years for \$500 per month and then would be vested with a lease 99 years at a specified monthly rent. After 30 years, Petitioner would own the Property outright. In 1987, Settlers executed the Trust of Robert C. Cosgrove and Marian V. Cosgrove, the terms of which reflected the agreement with Petitioner. In 1988, Settlers executed wills identifying the Property as community property and each Settlor left one half of the Property to Petitioner. In 2022, Marian Cosgrove executed two versions of the Marian V. Cosgrove Revocable Trust UDT. The Property is purportedly an asset of the 2022 trusts. Robert Cosgrove is now deceased and Marian Cosgrove is incapacitated. Petitioner seeks, inter alia, an order that the trustee of the Marian V. Cosgrove Revocable Trust UDT, August 11, 2022 transfer the Property to her and that the 2022 trusts are invalid.

Eve Monroe (“Respondent”), daughter of Marian Cosgrove, objected to the petition in her capacity as an individual beneficiary, as trustee of the Marian V. Cosgrove Revocable Trust UDT, August 11, 2022, and as attorney-in-fact for Marian Cosgrove. Respondent also filed a supplemental objection, providing a copy of the power of attorney signed by Marian Cosgrove. Other interested parties were served but no other interested party filed an objection or appeared in the instant litigation.

The parties participated in mediation resulting in a settlement signed by Petitioner and Respondent, as an individual, as trustee, and as attorney-in-fact for Marian Cosgrove.

Currently before the Court is Petitioner’s motion to approve a settlement agreement she entered into with Respondent. The motion is unopposed.

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